RATIO / CASE READING SHEET

Allenet de Ribemont v. France

European Court of Human Rights | ECHR-15175-89 | France | 1995

Editorial reading aid | source pinpoints checked locally

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Charge

Aiding and abetting intentional homicide. This was an allegation, not a conviction.

Paragraph 12

What was at stake

Taken into custody on 14 January 1977; released on 1 March 1977. A discharge order followed in 1980. The judgment does not record a prosecutor-requested prison term.

Paragraph 12

Presumption of innocence

Senior police officials publicly identified the applicant as a murder instigator before the competent court assessed the facts.

Paragraphs 35-41

Court's conclusion

The Court found an Article 6(2) breach. It also found excessive length of compensation proceedings under Article 6(1). The award was FRF 2 million for damage, plus costs; this is compensation, not a criminal penalty.

Paragraph 41; operative provisions 1-4

For a lawyer reviewing a new matter

Compare the speaker's official role, exact words, timing and audience. Distinguish an unequivocal declaration of guilt from information about an investigation. This regional judgment is a comparison, not a prediction of UN review success.

Paragraphs 38-41

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